

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
SHERRY NIRHONDA FAMOUS and
DARREN MCGILL,

Plaintiffs,

-against-

CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, SERGEANT JAMES JOYCE –
Shield No. 3624,

Defendants.
-----X

Filed on

Index No.

Plaintiff designates Kings
County as place of trial

SUMMONS

The basis of venue is the place
of the occurrence of the tort.

Plaintiff resides at:
230 Revere Avenue
Bronx, NY 10465

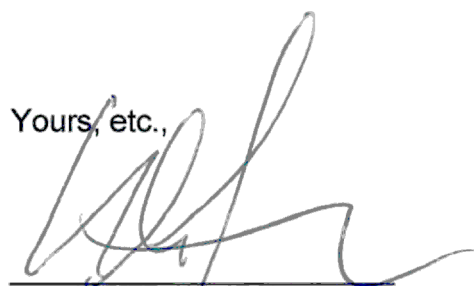
County of Bronx

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Amended Complaint.

Dated: New York, New York
October 18, 2018

Yours, etc.,



NUSSIN S. FOGEL
Attorney for Plaintiff
299 Broadway - Suite 620
New York, New York 10007
(212) 385-1122

Defendants' Addresses:

CITY OF NEW YORK
1 Centre Street
New York, NY 10007

NEW YORK POLICE DEPARTMENT
One Police Plaza
New York, NY 10007

SERGEANT JAMES JOYCE – Shield No. 3624
c/o NEW YORK POLICE DEPARTMENT
111th Precinct
45-06 215th Street,
Bayside NY, 11361

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
SHERRY NIRHONDA FAMOUS and
DARREN McGILL,

Plaintiffs,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, SERGEANT JAMES JOYCE –
Shield No. 3624,

Defendants.

-----X
Plaintiffs for their Verified Complaint by their attorneys, NUSSIN S. FOGEL,
respectfully allege as follows:

1. That, at all times hereinafter mentioned, plaintiffs herein were and still are residents of the County of Kings, City and State of New York.
2. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, was and still is a municipal corporation duly organized under the laws of the State of New York.
3. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, was and still is a municipal agency of defendant, CITY OF NEW YORK.
4. That, at all times hereinafter mentioned, defendant, SERGEANT JAMES JOYCE – Shield No. 3624, was and still is an employee of defendant, CITY OF NEW YORK.
5. That, at all times hereinafter mentioned, defendant, SERGEANT JAMES JOYCE – Shield No. 3624, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

6. That, at all times hereinafter mentioned, defendant, SERGEANT JAMES JOYCE – Shield No. 3624, was an employee of defendant, CITY OF NEW YORK, held the rank of police officer and was known as POLICE OFFICER JAMES JOYCE – Shield No. 21182.

7. That, at all times hereinafter mentioned, defendant, SERGEANT JAMES JOYCE – Shield No. 3624, was an employee of defendant, NEW YORK POLICE DEPARTMENT, held the rank of police officer and was known as POLICE OFFICER JAMES JOYCE – Shield No. 21182.

8. That, plaintiff herein has complied with all of the conditions precedent to the bringing of the within action and more particularly, on or about the 31st day of January, 2018, and within ninety (90) days after the occurrence set forth herein, plaintiffs duly served a written Notice of Claim upon the defendants herein, pursuant to law, and was assigned claim number 2018PI003488; that, more than thirty (30) days have elapsed since said Notice of Claim has been served; that said claims remains unadjusted and defendants herein have failed and refused to make any adjustments thereto; that the within action has been commenced within one (1) year and ninety (90) days of the date of the occurrence and that defendants conducted a statutory hearing relating to the claims made therein on June 25, 2018.

9. That, on or about November 7, 2017, at approximately 11:30 a.m. plaintiff, SHERRY NIRHONDA FAMOUS, in the course and scope of her employment at a retail store located 720 5th Avenue, New York, sought the assistance of defendant, SERGEANT JAMES JOYCE – Shield No. 3624, in the apprehension of individuals who, upon information and belief, stole from said retail store.

10. That, at the aforesaid time and place, plaintiff, SHERRY NIRHONDA FAMOUS, and defendant, SERGEANT JAMES JOYCE – Shield No. 3624, pursued after said individuals on foot.

11. After a short pursuit on foot defendant, SERGEANT JAMES JOYCE – Shield No. 3624, unlawfully stopped, detained and thereafter arrested and imprisoned plaintiff, SHERRY NIRHONDA FAMOUS.

12. That on or on or about February 12, 2016, at approximately 12:30 a.m., plaintiff, SHERRY NIRHONDA FAMOUS, remained unlawfully detained, arrested and imprisoned thereat by defendants herein.

AS AND FOR A FIRST CAUSE OF ACTION

13. Plaintiffs herein repeat, reiterate and re-allege each and every allegation as set forth in paragraphs “1” through “12” as if the same had been fully set forth herein.

14. That, at the aforesaid times and places, defendant, SERGEANT JAMES JOYCE – Shield No. 3624, unlawfully stopped and detained and thereby seriously and severely injured plaintiff, SHERRY NIRHONDA FAMOUS.

15. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, by its agents, servants and employees were careless and negligent in permitting plaintiff, SHERRY NIRHONDA FAMOUS, to be unlawfully stopped and detained and in failing to exercise the necessary amount of care and caution reasonable under the circumstances to prevent this foreseeable occurrence.

16. That, plaintiff, SHERRY NIRHONDA FAMOUS, injuries were due solely to the careless, negligent and reckless conduct on the part of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, without any negligence on the part of

plaintiff herein contributing thereto.

17. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, negligently disregarded their duty to protect plaintiff, SHERRY NIRHONDA FAMOUS; negligently failed to prevent plaintiff, SHERRY NIRHONDA FAMOUS, from being unlawfully stopped and detained; negligently failed to prevent its agents, servants and/or employees from unlawfully stopping and detaining plaintiff, SHERRY NIRHONDA FAMOUS; negligently took no action to stop the unlawful stopping and detaining of plaintiff, SHERRY NIRHONDA FAMOUS, and by reason of the foregoing inflicted serious injuries upon plaintiff, SHERRY NIRHONDA FAMOUS; negligently failed to provide adequate safety and security so as to protect plaintiff, SHERRY NIRHONDA FAMOUS; negligently failed to provide adequate safeguards and protection so that plaintiff, SHERRY NIRHONDA FAMOUS, would not be subject to unlawful stopping and detaining without provocation or knowledge that plaintiff, SHERRY NIRHONDA FAMOUS, posed a danger or threat or plaintiff, SHERRY NIRHONDA FAMOUS, was guilty of any wrong doing; and negligently failed to take all reasonable and necessary precautions to prevent the occurrence herein.

18. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants herein in their ownership, operation, maintenance, control and supervision of the aforesaid premises, facilities, agents, servants and employees thereat; and in their negligent performance and execution of its police, enforcement and investigational duties.

19. That, as a result of the aforesaid occurrence, plaintiff, SHERRY NIRHONDA FAMOUS, suffered serious, severe physical, personal and emotional injuries, medical

expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS FOR A SECOND CAUSE OF ACTION

20. Plaintiffs herein repeat, reiterate and re-allege each and every allegation as set forth in paragraphs "1" through "19" as if the same had been fully set forth herein.

21. That, at the aforesaid times and places, defendant, SERGEANT JAMES JOYCE – Shield No. 3624, unlawfully stopped and detained plaintiff herein and thereby seriously and severely injured plaintiff, SHERRY NIRHONDA FAMOUS.

22. That, defendant, SERGEANT JAMES JOYCE – Shield No. 3624, carelessly, and negligently injured plaintiff, SHERRY NIRHONDA FAMOUS, and failed to exercise the necessary amount of care and caution which a reasonable person would have exercised to prevent this foreseeable occurrence.

23. That, plaintiff's injuries were due solely to the careless, negligent and reckless conduct on the part of defendant, SERGEANT JAMES JOYCE – Shield No. 3624, without any negligence on the part of plaintiff, SHERRY NIRHONDA FAMOUS, contributing thereto.

24. That, defendant, SERGEANT JAMES JOYCE – Shield No. 3624, disregarded his duty to protect plaintiff, SHERRY NIRHONDA FAMOUS; negligently stopped and detained plaintiff, SHERRY NIRHONDA FAMOUS, and by reason thereof inflicted serious injuries upon plaintiff, SHERRY NIRHONDA FAMOUS; failed to prevent plaintiff, SHERRY NIRHONDA FAMOUS, from being subjected to the negligent stopping and detention; negligently took no action to stop the unlawful stopping and detaining of plaintiff, SHERRY NIRHONDA FAMOUS, and by reason of the foregoing inflicted serious

injuries upon plaintiff, SHERRY NIRHONDA FAMOUS; and negligently, carelessly and recklessly performed and executed his police, enforcement and investigational duties.

25. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendant, SERGEANT JAMES JOYCE – Shield No. 3624, in the performance and execution of their police, enforcement and investigational duties.

26. By virtue of the aforesaid, plaintiff, SHERRY NIRHONDA FAMOUS, was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

27. That, plaintiffs herein repeat, reiterate and re-allege each and every allegation as set forth in paragraphs “1” through “26” as if the same had been fully set forth herein.

28. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, were negligent in the hiring, supervision, training and retention of defendant, SERGEANT JAMES JOYCE – Shield No. 3624, who caused plaintiff, SHERRY NIRHONDA FAMOUS, to incur serious and severe personal injuries.

29. That, defendants herein knew or should have known that, prior to, at and subsequent to the time when defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, engaged defendant, SERGEANT JAMES JOYCE – Shield No. 3624, that he was a person of incompetence and indifference; that he had previously unlawfully stopped and detained individuals and thereby inflicted serious injuries thereupon; had unlawfully stopped and detained individuals other individuals without just cause and

provocation; and was known by general reputation to be incompetent and indifferent.

30. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, failed and neglected to make any, or appropriate, inquiries with respect to the competence, temperament and character of their employee defendant, SERGEANT JAMES JOYCE – Shield No. 3624, when this defendant officer was employed and engaged by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

31. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants herein.

32. That, by virtue of the aforesaid, plaintiff, SHERRY NIRHONDA FAMOUS, suffered serious and severe personal and emotional injuries and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

33. Plaintiffs herein, repeat, reiterate and re-allege each and every allegation as set forth in paragraphs “1” through “32” as if the same had been fully set forth herein.

34. That, defendant, SERGEANT JAMES JOYCE – Shield No. 3624, failed to protect plaintiff, SHERRY NIRHONDA FAMOUS, and unjustly, intentionally, unlawfully and falsely detained or arrested plaintiff, SHERRY NIRHONDA FAMOUS, or caused plaintiff, SHERRY NIRHONDA FAMOUS, to be, become and remain falsely detained or arrested.

35. That, defendant, SERGEANT JAMES JOYCE – Shield No. 3624, intentionally confined plaintiff; that, plaintiff, SHERRY NIRHONDA FAMOUS, was aware of the confinement; plaintiff, SHERRY NIRHONDA FAMOUS, did not consent to the confinement; and said confinement was not otherwise privileged.

36. By virtue of the aforesaid, plaintiff, SHERRY NIRHONDA FAMOUS, was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

37. Plaintiffs herein repeat, reiterate and re-allege each and every allegation as set forth in paragraphs "1" through "36" as if the same had been fully set forth herein.

38. That, defendant, SERGEANT JAMES JOYCE – Shield No. 3624, failed to protect plaintiff, SHERRY NIRHONDA FAMOUS, and unjustly, intentionally, unlawfully and falsely detained or imprisoned plaintiff, SHERRY NIRHONDA FAMOUS, or caused plaintiff, SHERRY NIRHONDA FAMOUS, to be, become and remain falsely detained or imprisoned.

39. That, defendant, SERGEANT JAMES JOYCE – Shield No. 3624, intended to confine plaintiff, SHERRY NIRHONDA FAMOUS; plaintiff, SHERRY NIRHONDA FAMOUS, was conscious of the confinement; plaintiff, SHERRY NIRHONDA FAMOUS, did not consent to the confinement; and said confinement was not otherwise privileged.

40. By virtue of the aforesaid, plaintiff, SHERRY NIRHONDA FAMOUS, was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION

41. Plaintiffs herein repeat, reiterate and re-allege each and every allegation as set forth in paragraphs "1" through "40" as if the same had been fully set forth herein.

42. That, at the aforementioned times and places, plaintiff, SHERRY NIRHONDA FAMOUS, was seized, detained, falsely arrested and imprisoned by defendant, SERGEANT JAMES JOYCE – Shield No. 3624, without just cause or provocation.

43. That, defendant, SERGEANT JAMES JOYCE – Shield No. 3624, used his position and power which was clearly unlawful and unjust in light of the circumstances existing at the time.

44. That, the seizing, detaining, false arrest and imprisonment by defendant, SERGEANT JAMES JOYCE – Shield No. 3624, violated plaintiff's civil rights as afforded under the Constitutions and laws of the United States and the State of New York.

45. That, the acts of defendant, SERGEANT JAMES JOYCE – Shield No. 3624, was done under the color of law and under the color of authority to be executed justly by defendants herein.

46. That, the failure of defendant, SERGEANT JAMES JOYCE – Shield No. 3624, in the exercise of their functions and their failure to enforce the laws of the United States and of the City and State of New York were carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to the citizens of the City of New York which include plaintiff, SHERRY NIRHONDA FAMOUS,.

47. That, seizing, detaining, false arrest and imprisonment of plaintiff, SHERRY NIRHONDA FAMOUS, by defendant, SERGEANT JAMES JOYCE – Shield No. 3624, violated plaintiff's rights under the Fourth Amendment of the United States Constitution to be free from unreasonable searches and seizures; the Fifth Amendment of the United

States Constitution protecting against the deprivation of life, liberty or property without due process of law; the Eighth Amendment of the United States Constitution to be free from cruel and unusual punishment and the Fourteenth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law as well as the civil rights protections afforded to the plaintiff under the Constitution of the State of New York.

48. By virtue of the aforesaid, plaintiff, SHERRY NIRHONDA FAMOUS, was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

49. Plaintiffs herein repeat, reiterate and re-allege each and every allegation as set forth in paragraphs "1" through "48" as if the same had been fully set forth herein.

50. That, at the aforementioned times and places, plaintiff, SHERRY NIRHONDA FAMOUS, was seized, detained, falsely arrested and imprisoned by defendant, SERGEANT JAMES JOYCE – Shield No. 3624, without just cause or provocation.

51. That, defendant, SERGEANT JAMES JOYCE – Shield No. 3624, used his position and power which was clearly unlawful and unjust in light of the circumstances existing at the time.

52. That, the seizing, detaining, false arrest and imprisonment of plaintiff, SHERRY NIRHONDA FAMOUS, by defendant, SERGEANT JAMES JOYCE – Shield No. 3624, violated plaintiff's rights under the Fourth Amendment of the United States

Constitution to be free from unreasonable searches and seizures, the Fifth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law, the Eighth Amendment of the United States Constitution to be free from cruel and unusual punishment and the Fourteenth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law as well as the civil rights protections afforded to the plaintiff under the Constitution of the State of New York.

53. That, the acts of defendants herein were done under the color of law and under the color of authority to be executed justly by defendants herein.

54. That, the violation of plaintiff's constitutional rights were caused by the implementation of a custom, policy and/or official act and/or the deliberate indifference of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

55. That, the custom, policy and/or official act or deliberate indifference of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, and their failure to enforce the laws of the United States and of the City and State of New York is evidence of the reckless lack of cautious regard for the rights of citizens including plaintiff, SHERRY NIRHONDA FAMOUS, and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of defendants herein.

56. That, the failure of defendants herein in the exercise of their functions and their failure to enforce the laws of the United States and the City and State of New York was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to

the citizens of the City and State of New York which include plaintiff, SHERRY NIRHONDA FAMOUS.

57. That, as a result of the aforesaid violations of plaintiff's constitutional rights, plaintiff herein has been damaged in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, DARREN MCGILL

58. That, plaintiffs, repeat, reiterate and re-allege each and every allegation set forth in paragraphs "1" through "57", as if the same had been fully set forth herein.

59. That, at all times hereinafter mentioned, plaintiff, DARREN MCGILL, was and still is the lawful husband of plaintiff, SHERRY NIRHONDA FAMOUS.

60. That, as a result of the aforesaid, plaintiff, DARREN MCGILL, sustained loss of services, consortium, society, and companionship of the plaintiff, SHERRY NIRHONDA FAMOUS, and incurred medical expenses and out-of-pocket expenses on behalf of plaintiff, SHERRY NIRHONDA FAMOUS, all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower Courts.

WHEREFORE, plaintiff herein demands judgment against defendants herein in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a First Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Second Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Third Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Fourth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower

courts, as and for a Fifth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Sixth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Seventh Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for an Eighth Cause of Action, together with interest, costs and disbursements herein.

Dated: New York, NY
October 18, 2018

Yours, etc.,

NUSSIN S. FOGEL
Attorney for Plaintiff
Office & Post Office Address
299 Broadway, Suite 620
New York, NY 10007
(212) 385-1122

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)

COUNTY OF NEW YORK)

I, NUSSIN S. FOGEL, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am NUSSIN S. FOGEL, the attorney of record for the plaintiff herein, in the within action; I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge, except as the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by plaintiff, is that plaintiff resides outside of the county where affirmant maintains his office.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Information, records and data contained in affirmant's file and conversations had with the plaintiff herein.



NUSSIN S. FOGEL

I affirm that the foregoing statements
are true, under the penalties of perjury

Dated: New York, New York
October 18, 2018